

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 38-003

Amendments to Title 5 of the Chickasaw Nation Code (Tribal Law and Order Act Enactment)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations regarding the criminal procedures involving Indian persons, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations to enact provisions of the Tribal Law and Order Act, 25 U.S.C. § 1302(c).

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 3, Section 5-301.10 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; language in black is current and shall remain the same; omissions without deletions signified by “***”):

SECTION 5-301.10

RIGHTS OF DEFENDANT.

A. In all Criminal Proceedings, the Defendant shall have the following rights:

B. In a Criminal Proceeding in which the Defendant may be subjected to a term of imprisonment greater than one (1) year for a single offense, the Chickasaw Nation shall provide to the Defendant those rights set forth in the Tribal Law and Order Act of 2010 (25 U.S.C. § 1302(c)), as amended, including all of the following:

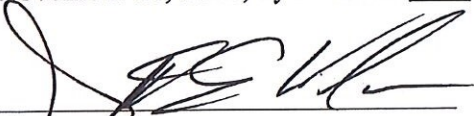
1. the right to effective assistance of counsel at least equal to that guaranteed by the Constitution of the United States;

2. at the expense of the Nation, an indigent Defendant shall be provided the assistance of a defense attorney licensed to practice law before all Courts of the Chickasaw Nation and by any jurisdiction in the United States that applies professional

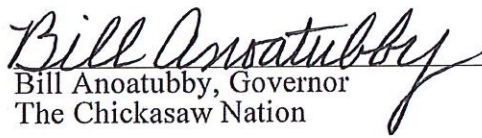
licensing standards and effectively ensures the competence and professional responsibility of its licensed attorneys;

3. that the Judge presiding over the Criminal Proceeding:
 - a. has sufficient legal training to preside over Criminal Proceeding;
 - and
 - b. is licensed to practice law by any jurisdiction in the United States;
4. prior to charging the Defendant, the Nation shall make publicly available its criminal laws, rules of evidence, and rules of criminal procedure; and
5. a record of the Criminal Proceeding shall be maintained, including an audio or other recording of the trial proceeding.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on November 20, 2020, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: NOV 20 2020
Bill Anoatubby, Governor
The Chickasaw Nation

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Amendments to Title 5 of the Chickasaw Nation Code
(Tribal Law and Order Act Enactment)

Explanation:

This resolution enacts provisions of the Tribal Law and Order Act, codified at 25 U.S.C. § 1302(c). The amendments provide additional rights for criminal defendants in the Chickasaw Nation Courts when they are sentenced to a term of imprisonment greater than one (1) year for a single offense.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature